

CITY OF CHEYENNE
CONTRACT MODIFICATION

Approved as to
form only:

JMKD
Date: 7/6/21

Contract Modification: #3
Project: 2018 On Call Traffic Engineering Services
Project Number: Contract # 6625
Contractor: Western Research & Development, Ltd.
Date Prepared: June 29, 2021

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Changes would provide for additional necessary design services and construction inspection for the Storey Boulevard and Ridge Road intersection. The amended scope of work and fees as shown in attachment are incorporated by reference and made a part hereof.

II. New Contract Items

See attached Proposal from Western Research & Development, Ltd.

III. Schedule

Through the completion of the project.

IV. Summary

Original Contract Amount	\$90,294.00
Previous Modifications	\$69,620.10
Contract Amount Prior to this Modification.....	\$159,914.10
This Modification	\$35,194.51
New Contract Amount.....	\$195,108.61

V. Approvals

City of Cheyenne

DATE: _____

Mayor Patrick Collins

/ATTEST: City Clerk Kristina F. Jones

Recommend approval by City Project Manager / Accepted by Consultant



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

DATE: June 29, 2021
TO: Mayor Patrick Collins, City Council Members
FROM: Anissa Gerard, Traffic Engineer

SUBJECT: Contract Modification #3 to Professional Service Agreement for the 2018 On Call Traffic Engineering Services (City Contract No. 6625)

Please find the attached proposed contract modification for the above referenced Professional Service Agreement. Engineering Staff has negotiated the fee proposal from the consultant in order to provide additional design services to bring the project to completion. Additional fees required to complete the project are outlined in this modification.

Engineering Staff evaluated the fee proposal for traffic engineering services and construction management services based on time and material estimates. We believe this proposal will provide the required services to complete the project. These fees include services for the following items:

Task 1.0 Additional design for updated ADA sidewalk and signal re-design was \$25,343.25. The remaining balance in the contract was short to cover this so additional funds are necessary to complete the design.

Task 2.0. Construction Engineering. The addition of construction inspection, weekly meetings, review of submittals and weekly reports. This is an additional cost of \$9,851.26.

The total modification will be \$35,194.51. We respectfully request your approval of this contract modification.

Western



Civil Engineers

Research & Development, Ltd.

Land Surveyors

Ms. Anissa Gerrard PE
Traffic Engineer
2101 O'Neil Avenue
City of Cheyenne

June 25, 2021

Cheyenne, Wyoming 82001

Re: Change Order #1 – Storey and Ridge Road Intersection

Dear Ms. Gerrard,

As per your request we have put together a change order for the Storey and Ridge Road Intersection for both Design and Construction Inspection based on the change of scope for the project. Below is a list breakdown of what will be required:

Design Changes

1. Current changes requested for the project.	\$1,080.00
2. Drawings need to be reviewed in house QA/QC	1,080.00
3. Design detail drawing w/extra sheet added showing dimensioning to fix points for all poles along with elevations of pole foundations.	720.00
4. Correcting Cover and renumbering sheets, misc.	360.00
5. Any corrections to drawings that are generated from #3 above	540.00
6. Time for Jerry to review and answer and additional questions	720.00
7. Bid Process – pre bid meeting, answer questions, bid summary, recommendations	2,520.00
8. Engineering Review Process – responding to report, making changes to drawings, submitting answers to report	1,440.00
9. General administrative reports, phone calls, emails, etc.	840.00
10. New Bid sheets – updated to reflect changes	360.00
11. Current billings that have been submitted	12,075.75
12. Unbilled work that has not been submitted	<u>3,607.50</u>
Total for Design	\$25,343.25

5908 Yellowstone Road
Cheyenne, WY 82009

www.wrd-ltd.com
Fax (307) 635-0410

Cheyenne (307) 632-5656
Ft Collins (970) 482-5656
Jackson (307) 733-2999

180 South Willow Street
PO Box 2870
Jackson, WY 83001

Y2

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Construction Inspection Changes

1. Inspection during construction	\$9,450.00
1.75 hours/day on site, 1.5 months, 15 minutes to write report/day	
2. Review of Pay apps – approximately 3	840.00
3. Emails – Questions – Misc	560.00
4. Pre-Construction meeting	560.00
5. Approve Shop drawings	420.00
6. General meetings w/City & Contractor on Site	2,700.00
7. Compiling Reports in PDF's	140.00
8. Letter of Substantial Completion	420.00
9. 11 month walk through	900.00
10. Punchlist - Initial	360.00
11. Punchlist – Final	360.00
12. Final Letter of Completion	<u>360.00</u>
Total Construction Inspection Fee	\$17,070.00
Less credit in account	<u>7,218.74</u>
Total Change in Fee	\$9,851.26

If you have any questions, please let me know.

Sincerely,

Gary

Gary N Grigsby PE PLS
Vice President

City of Cheyenne
ORIGINAL

CITY OF CHEYENNE
CONTRACT MODIFICATION

Approved as to
form only:

Date: 11/7/19

Contract Modification: #2
Project: On-Call Traffic Engineering Services
Project Number: Contract # 6625
Contractor: Western Research & Development, Ltd.
Date Prepared: October 23, 2019

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Changes would provide for additional necessary design services (pavement, drainage, and fiber) for the additional intersections including Carey Avenue & W. 24th Street and Carey & W. 25th Street (2019 signal upgrades). The amended scope of work and fees as shown in attachment are incorporated by reference and made a part hereof.

II. New Contract Items

See attached Proposal from Western Research & Development, Ltd.

III. Schedule

Through the completion of the project.

IV. Summary

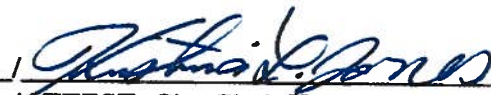
Original Contract Amount	\$90,294.00
Previous Modifications	\$33,222.00
Contract Amount Prior to this Modification	\$123,516.00
This Modification	\$36,398.10
New Contract Amount	\$159,914.10

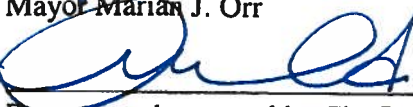
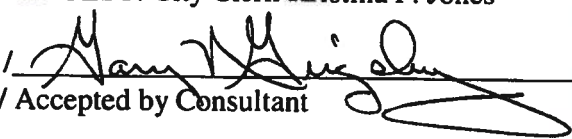
V. Approvals

DATE: 12-03-19

City of Cheyenne


Mayor Marian J. Orr


/ ATTEST: City Clerk Kristina F. Jones


Recommend approval by City Project Manager / Accepted by Consultant 



CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

A COMMUNITY OF CHOICE

MEMO

DATE: October 23, 2019
TO: Mayor Orr, City Council Members
FROM: Anissa Gerard, Traffic Engineer

SUBJECT: Contract Modification #2 to Professional Service Agreement #6625 for the On-Call Traffic Engineering Services Contract

Please find the attached proposed contract modification for the above referenced Professional Service Agreement. Engineering Staff has negotiated the fee proposal from the consultant in order to provide additional design services to bring the project to completion. Additional fees required to complete the project are outlined in this modification.

Engineering Staff evaluated the fee proposal for construction management services based on time and material estimates. We believe this proposal will provide the required services to complete the project. These fees include services for the following items;

Task 1.0 The 2 intersections being re-designed cost was \$43,444. The remaining balance in the contract was short to cover this so additional funds are necessary to complete the design.

Task 2.0. Re-design of pavement/curb and gutter and storm inlets - Added design beyond what was originally assumed. This results in additional meetings, project administration, and overall management.

Task 3.0 Construction Engineering - The addition of construction inspection, weekly meetings, review of submittals and weekly reports

The total modification will be \$36,398.10. We respectfully request your approval of this contract modification.



August 30, 2019

City of Cheyenne
Anissa Gerard, Ph.D., P.E.
Traffic Engineer

Subject: Change to Scope of Work for 25th and Carey Intersection

Dear Ms. Gerard:

Western Research & Development, Ltd. (Western) has been providing design services for the signalized intersection at 25th St and Carey Ave. During the signal design, Western noticed the asphalt conditions on 25th Street and the ADA ramps were in very poor condition. Western and City of Cheyenne staff met on site on August 28, 2019 to inspect and discuss this issue. Both parties discussed the extent of road reconstruction, curb and gutter replacement, ADA ramp replacement, and storm sewer inlet replacements required for the project. Western's understanding of the additional scope of work of the project is as follows:

- Reconstruction of 25th Street from the west side of Carey Avenue to the new access on 25th (west side of 2504 Carey Avenue property). Transition from existing to new asphalt will use a wedge design that eases the impact on vehicles traversing the area. This area encompasses approximately 6,000 square feet of asphalt road replacement (150 lineal feet of 40-foot-wide road).
- Curb and gutter will be replaced on the north side of 25th in the same area as the road reconstruction. Curb and gutter replacement will continue north on Carey Ave to the northeast corner of 2504 Carey Avenue. This is approximately 200 lineal feet of curb and gutter replacement.
- Along with the curb and gutter replacement, the existing storm inlets on the northwest corner of the Carey and 25th intersection are to be replaced (2 inlets).
- ADA ramps on the west side of the intersection are to be designed. These ramps will be coordinated with the sidewalk and ramp construction on the east side of the intersection (part of the Capital Reconstruction project).

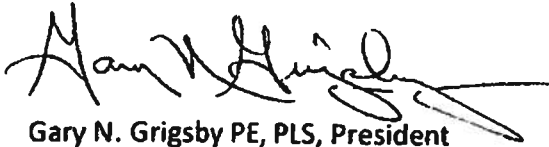
A geotechnical investigation is not included in the proposed scope. Western proposes that the subgrade be reworked, covered with 6" of Grade W base, and a minimum of 3.5" asphalt concrete for the road section. Western also recommends incorporating fly ash into the subgrade preparation. This is a small additional construction cost that significantly adds to the structural stability of the road reconstruction.

Western proposes a fee of \$9,950.00 for the design and bid assistance on the increased scope of work. This fee includes the development of construction documents, responding to City comments, providing supplemental specifications, a final bid tab, and cost estimate. Western will also attend the pre-bid meeting and respond to contractor questions.

At the City's option, Western could also provide construction inspection for a fee of \$5,000.00. This fee would include a weekly site visit, corresponding weekly report, review of submittals from contractor, respond to requests for information from the contractor, and regular meetings with the City to keep staff updated on the status of the project. If the City would like some construction inspection assistance, but not the entire scope proposed, Western will be happy to negotiate the construction inspection fee.

We appreciate the opportunity to work on this expanded project with you. Please contact me regarding any questions or concerns with this proposal.

Sincerely,

A handwritten signature in black ink, appearing to read "Gary N. Grigsby", with a long horizontal flourish extending to the right.

Gary N. Grigsby PE, PLS, President

CITY OF CHEYENNE
CONTRACT MODIFICATION

Approved as to
form only:



Date: 2/5/18

Contract Modification: # 1
Project: FY2017-18 On-Call Traffic Engineering Services
Project Number: Contract #6625
Contractor: Western Research and Development, Ltd.
Date Prepared: January 31, 2018

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Contract was procured and written to enable the City to add additional tasks to the original contract via contract modification. This is the first additional task to be added. This additional task is to provide design services for a new traffic signal to be installed at the intersection of Storey Blvd. & Ridge Rd.

II. New Contract Items

The City is planning to install a new traffic signal at the intersection of Storey Blvd. & Ridge Rd. Traffic signal and intersection design is to be completed in the spring of 2018. Scope of engineering services for the traffic signal analysis and design shall include traffic data collection, capacity and queuing analysis, crash analysis, developing optimized traffic signal timing and coordination plans, identification of ROW needs, and traffic signalization design and construction drawings. See attached memo for breakdown of design costs.

III. Schedule

The design work is anticipated to take approximately ten weeks from when this modification is executed. The entire contract will terminate when all items involved have been completed. The original procurement stated that no new tasks would be added to this contract after June 30, 2018.

IV. Summary

Original Contract Amount	\$90,294.00
Previous Modifications	\$0.00
Contract Amount Prior to this Modification.....	\$90,294.00
This Modification.....	\$33,222.00
New Contract Amount	\$123,516.00

V. Approvals

DATE: February 27, 2018

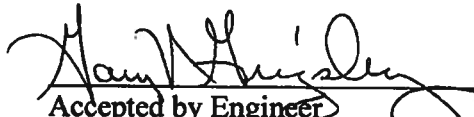
City of Cheyenne



Mayor Marian J. Orr



/ATTEST: City Clerk Carol Imlekofer



Accepted by Engineer



/Recommend approval by City Project Manager



February 6, 2018

Nathan Beauheim, P.E.
Transportation Administrator
Public Works Department
City of Cheyenne
2101 O'Neil Ave., Room 210
Cheyenne, WY 82001

Re: Ridge Road and Storey Boulevard Signal Design

Nathan,

We have completed the traffic counts on Ridge and Storey so we can talk about this if you want to.

Most of the locates have been done for pre construction but we need to have the new construction marked.

We have been to the site and done a walk thru. We have preliminary locations for the 4 poles. Everything seems to be workable. We have a little bit of research to do on property lines.

The budget for the design is as follows:

1. Design	\$23,672.00	
2. Bid Process	\$1,300.00	
3. Construction Insp	\$7,200.00	(8 hour per week for 8 weeks)
4. Post Project Insp.	\$1,050.00	

Total Design cost = \$33,222.00

If you have any questions please let me know.
Gary

Best Regards,

Gary N Grigsby
Gary N Grigsby PE PLS
President

PROFESSIONAL SERVICES AGREEMENT

3.52
Date: 2/6/2017

This Agreement is made by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City") and Western Research and Development, Ltd. ("Firm"), a corporation organized under the laws of the State of Wyoming, 5908 Yellowstone Road, Suite B; Cheyenne, WY 82009.

RECITALS

WHEREAS, the City seeks professional services related to a project referred to as the *FY2017-18 On-Call Traffic Engineering Services* to assist the City in as needed traffic engineering services;

WHEREAS, the City undertook a competitive bid process to solicit such services;

WHEREAS, Western Research and Development, Ltd. is engaged in the business of providing such services;

WHEREAS, Western Research and Development, Ltd. participated in the competitive bid process for such services as required by the City;

WHEREAS, the City selected Western Research and Development, Ltd. to provide certain professional services related to the *FY2017-18 On-Call Traffic Engineering Services*; and

WHEREAS, the City and Western Research and Development, Ltd. now desire to enter into this Agreement whereby Western Research and Development, Ltd. will provide specified professional services to the City,

WHEREAS, the Firm is qualified to provide the professional services desired by the City,

AGREEMENT

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, it is agreed by and between the City and the Firm as follows:

1. SCOPE OF WORK:

The Firm agrees to provide professional services for the City as described in Exhibit A. The City may order major changes in the scope or character of work, either decreasing or increasing the amount of the Firm's services. In the event that such changes are ordered, the Firm shall be entitled to additional compensation for additional work performed. Additional compensation for major changes shall be determined in accordance with Paragraph 2 of this Agreement, but in no event shall the City be liable for payment unless the amount of such additional compensation shall first have been agreed to in writing by the City. In the event major changes are ordered pursuant to this Section, the schedule for progress and completion in Section 3 of this Agreement and the compensation to be paid pursuant to Section 2 shall be adjusted by

negotiation between the Firm and the City pursuant to Section 4 of this Agreement.

2. COMPENSATION:

The Firm shall perform the services set forth in Exhibit A for a cost not to exceed ~~\$90,294.00~~. The Firm shall bill the City on a monthly basis. Upon acceptance and approval of work performed in accordance with the scope of work described in Exhibit A, the City shall make payment to the Firm within forty-five (45) days of receipt of said invoice. The Firm shall maintain hourly records of the time worked by its personnel and records of direct project expenses to support any audits the City may require and make those records available to the City at the City's request. Such records shall be maintained by the Firm for five (5) years following the date of final payment. The Firm shall ensure that its invoices, and supporting documentation, clearly identify fees, costs, and charges for Professional Services, as these fees, costs, and charges are not reimbursable under this Agreement pertaining to the *FY2017-18 On-Call Traffic Engineering Services*. The Firm shall ensure that its invoices clearly identify fees, costs, and charges for Professional Services that are properly reimbursable under this Agreement.

3. TERM AND EFFECTIVE DATE:

This Agreement shall commence on the date the last required signature is attached hereto and shall continue in full force and effect until the scope of work is completed in accordance with Exhibit A, unless this Agreement is earlier terminated pursuant to its provisions.

4. MODIFICATION:

Any changes, modifications, revisions, or amendments to this Agreement which are ordered pursuant to Section 1 herein or which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed, and signed by all parties to this Agreement.

5. INDEMNIFICATION, HOLD HARMLESS, AND INTELLECTUAL PROPERTY:

a. The Firm agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Firm's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Firm, or its employees or subcontractors in the performance of this Agreement. The Firm acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

b. The Firm shall also indemnify, defend and hold the City harmless from any and all claims, demands and causes of action that are asserted against the City as the result of the Firm's failure, neglect, or refusal to clearly and specifically identify fees, costs, and charges that are not

properly reimbursable under this Agreement for this project. This sub-section is intended to impose a duty on the Firm to maintain accurate and complete records.

c. The Firm agrees to indemnify, pay the defense costs of, and hold the City harmless from any and all claims, demands, costs, liabilities, losses, expenses and damages (including attorneys' fees, costs, and expert witnesses' fees) arising out of or in connection with this Agreement that sound in an intellectual property claim (including but not limited to patent, copyright, trademark, trade name, or trade secret infringement). This Section specifically survives the expiration or termination of this Agreement.

6. GOVERNMENTAL IMMUNITY:

The City and its officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the City and its officers and employees fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract, or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

7. INSURANCE:

The Firm must provide proof of the following insurance coverages:

a. **Commercial General Liability Insurance:**

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

b. **Business Automobile Insurance:**

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

c. **Workers' Compensation**

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Firm shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

d. **Professional Liability Insurance**

The Firm shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Firm's negligence in the performance of duties under this Agreement.

The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy. If this coverage is provided pursuant to a "claims made" policy:

(1) Firm, shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Firm begins the provision of services under this Agreement; and

(2) In the event the Firm's services extend into a future policy period, the Firm shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Firm will provide services under this Agreement; and

(3) Firm shall maintain said "claims made" coverage for a period of five (5) years following the last date that Firm has provided services under this Agreement; and

(4) In the event the Firm or the Firm's professional liability insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Firm shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Firm has provided services under this Agreement.

e. Additional Insurance Information

The Firm shall name the City of Cheyenne as an Additional Insured by endorsement on its insurance policies, with the exception of workers' compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Firm shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Firm to immediately notify in writing the city risk manager, city clerk, and city attorney of

any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, the Firm shall provide the City with copies of insurance policies and policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or the Firm's obligation hereunder.

Any insurance company providing coverage under this agreement shall have a minimum A. M. Best rating of A- (excellent).

8. GOVERNING LAW/JURISDICTION/VENUE:

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

9. COMPLIANCE WITH LAWS:

The Firm shall comply with all applicable federal, state and local laws, rules and regulations in the performance of this Agreement, including federal and state anti-discrimination laws. The Firm shall be responsible for all such non-compliance and shall defend, hold harmless and indemnify the City therefrom.

10. ALCOHOL AND CONTROLLED SUBSTANCE POLICY:

In compliance with the Drug-Free Workplace Act of November 1988, the City has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All parties under contract with the City, including the Firm and its employees and subcontractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy that pertains to drug and alcohol usage on City property and other sites occupied by the Firm while performing duties and responsibilities of this contract. It is the responsibility of the Firm to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of those requirements and to insure their compliance therewith. If the Firm, its employees or subcontractors are found to be in violation of this policy, this Agreement may be terminated.

11. INDEPENDENT CONTRACTOR:

At all times during the term of this Agreement, the Firm shall be considered an independent contractor. Neither the Firm nor any one employed by it shall represent, act, purport to act or be deemed to be the agent, representative, employee or servant of the City.

12. PERSONNEL:

The Firm agrees that it will employ at its own expense, all personnel necessary to perform the services required by this Agreement and in no event shall such personnel be employees of the City. All of the services required hereunder shall be performed by the Firm and all personnel engaged therein shall be fully qualified under applicable federal, state and local law to undertake the work performed by them. The Firm assumes full and sole responsibility for the payment of all compensation and expenses of such personnel and for all state and federal income tax, unemployment insurance, Social Security, disability insurance and other applicable withholdings.

13. CONFIDENTIALITY:

To the extent allowed by law, the City and the Firm shall treat as confidential and not disclose to others information (including technical information, experience or data) regarding either party's plans, programs, plants, processes, products, costs, equipment, operations, or customers which come within the knowledge of the parties, without in each instance securing the prior written consent of the other party, unless such disclosure is required by law or legal process. However, nothing shall prevent either the Firm or the City from disclosing to others or using in any manner information which either party can show (a) has been published or has become part of the public domain other than by acts of the Firm or the City; (b) has been furnished or made known to the Firm or the City by third parties without restrictions on its disclosure; or (c) was in either party's possession prior to the disclosure thereof by the City or the Firm to each other. Neither the Firm nor the City shall be restricted from releasing information in response to a subpoena, court order, or legal process, but, in the event such disclosure becomes necessary, the disclosing party shall notify the other party of the demand for information at least seven (7) days prior to disclosing such information so that the other party may take any and all steps provided by law to prevent the release of such information.

14. FIRM'S RESPONSIBILITIES:

The Firm shall be responsible for all terms and conditions as set forth in this Agreement and the professional quality, technical accuracy, and timely completion of all services as set forth in Exhibit A, and all changes in the scope or character of the work made pursuant to Sections 1 or 4 herein. The Firm shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies. The Firm shall perform all work in a professional manner in conformance with industry standards. If applicable, the Firm shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or local requirements. If applicable, the City shall notify the Firm of any state or federal determination of noncompliance.

15. KICKBACKS:

The Firm certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Firm breaches or violates this warranty, the City may, at its discretion, terminate this Agreement without liability to the City, and deduct

from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

16. MONITORING ACTIVITIES:

The City shall have the right to monitor all activities related to this Agreement that are performed by the Firm or its subconsultants. This shall include, but not be limited to, the right to make site inspections, if applicable, at any time and with reasonable notice; to bring experts and Firms on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

17. NON-DISCRIMINATION:

The Firm shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, gender, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this Agreement.

18. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES (49 C.F.R. Part 26):

All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.

19. NOTICES:

Any notice, correspondence or billing required to be given by the terms of this Agreement shall be delivered by hand, or delivered by mail, postage prepaid, to the addresses of the respective parties stated below:

City: Nathan Beauheim, Project Manager
City Engineer's Office
2101 O'Neil Avenue
Cheyenne, WY 82001

Firm: Western Research and Development, Ltd.
5908 Yellowstone Road, Suite B
Cheyenne, WY 82009
ATTN: Gary Grigsby

20. INTELLECTUAL PROPERTY AND WORK PRODUCT:

All work (preliminary, draft, and final) performed by the Firm under this Agreement is the property of the City. The City will own any and all data, documents, working papers, computer programs, photographs, and other material produced by the Firm pursuant to this Agreement, and the Firm hereby assigns and transfers to the City any and all intellectual property rights for such materials. The Firm will provide the City with copies of all such materials. Under no circumstances, including pending disputes between the City and the Firm, will the Firm fail to deliver possession of said documents and materials to the City upon demand.

21. CONFLICT OF INTEREST:

In entering this Agreement, the Firm represents and warrants that it has not conducted any work that may constitute a conflict of interest that would render any of its services under this Agreement non-reimbursable under this Agreement or any federal regulations that may be incorporated into said contract. The Firm further represents and warrants it presently has no interest, and shall not acquire any interest, direct or indirect, financial or otherwise, which would conflict in any manner or degree with performance of the services hereunder. In addition, the Firm covenants that in the performance of this contract, no subcontractor or person having such an interest shall be employed. The Firm certifies that no one who has or will have any financial interest under this contract is an officer or employee of the City.

22. ACCEPTANCE NOT WAIVER:

The City's approval of drawings, plans, specifications, reports, and incidental work or materials furnished hereunder shall not in any way relieve the Firm from responsibility for the technical accuracy of the work. The City's approval or acceptance of, or payment for, any services shall not be construed to operate as a waiver of any of the City's rights under this Agreement or any of its legal rights under statute and common law arising out of the performance of this Agreement.

23. DEFAULT:

Each and every term and condition herein shall be deemed a material element of the Agreement. In the event either party shall fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

24. REMEDIES:

In the event a party declares the other party in default hereof, said party declaring default shall notify the defaulting party in writing and such defaulting party shall be allowed a period of fifteen (15) days to cure said default. In the event that the default remains uncorrected, the party not in default may elect to: (a) terminate the Agreement and seek damages; (b) treat the Agreement as continuing and require specific performance; or (c) avail itself of any other remedy at law or equity. In the event the Firm fails to strictly perform in accordance with this Agreement, the City

may elect to make good such deficiencies and charge the Firm therefore.

25. TERMINATION:

The City may, by written notice to Firm, terminate this Agreement in whole or in part by giving Firm five (5) calendar days' written notice. The effective date of termination shall be five (5) calendar days from the date of the notice of termination. Upon receipt of such notice of termination, the Firm shall:

a. Discontinue all services affected by the notice (unless the notice directs otherwise); and

b. Deliver to the City, within five (5) calendar days from the date of the notice of termination, all data, designs, drawings, specifications, reports, estimates, summaries and all other work that has been performed or is to be performed under this Agreement, whether completed or in process. In the event of termination, the City will pay the Firm for all labor and services supplied and accepted as of the effective date of termination.

26. WAIVER:

The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach thereof.

27. SEVERABILITY:

If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of this Agreement, which shall continue in full force and effect.

28. SUCCESSORS AND ASSIGNS:

All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective permitted successors and assigns.

29. ASSIGNMENT:

Neither party shall assign this Agreement without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the Firm from subcontracting to a qualified subcontractor.

30. CONFIDENTIALITY OF INFORMATION:

If applicable, notwithstanding the release of records as required by the Wyoming Public Records Act, Wyo. Stat. § 16-4-201, *et seq.*, all documents, data compilations, reports, computer

programs, photographs and any other work provided to or produced by the Firm exclusive to the performance of this Agreement, shall be kept confidential by any Firm unless written permission is granted by the City for its release.

31. ETHICS:

The Firm shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing the City and the Firm.

32. FORCE MAJEURE:

Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of cases beyond the control and without fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays. This provision shall not be effective unless the failure to perform is beyond the control and without the fault or negligence of the nonperforming party.

33. THIRD-PARTY RIGHTS:

The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the parties' immunities.

34. ENTIRE AGREEMENT OF THE PARTIES:

This Agreement, including Exhibits A, B, and C contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

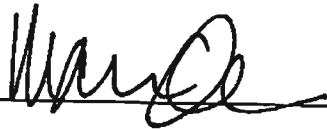
The effective date of this Agreement is the date of the last signature affixed to this page.

[SIGNATURES ON FOLLOWING PAGE]

CONTRACT NO. _____

CITY OF CHEYENNE

2/28/2017
Date

By: 

Marian J. Orr, Mayor

(SEAL)
ATTEST:

Carol Intlekofer
Carol Intlekofer, City Clerk

Western Research and Development, Ltd.

3-13-2017
Date

By: 

Printed Name: GARY N GRIGORA

Title: President

PROFESSIONAL SERVICES AGREEMENT
Project Name: **FY17-18 ON-CALL TRAFFIC ENGINEERING SERVICES**

EXHIBIT "A"

SCOPE OF WORK

A. Project Description

Purpose: The City of Cheyenne is hereby soliciting consultant proposals for professional services for Fiscal Years 2017-2018 ON-CALL TRAFFIC ENGINEERING SERVICES. This request invites qualified consultants to submit proposals for accomplishments of the items of work described below under Scope of Services. Proposals shall be prepared and submitted in accordance with the requirements described in this Request for Proposals (RFP). The City is interested in selecting a consulting firm to provide on-call City-wide traffic engineering services, as needed. Once the firms are selected, task orders will be negotiated for individual projects, as projects are identified for approval by the Governing Body. Specific traffic engineering tasks for identified projects for this RFP will be defined by an individual scope of work and cost estimate prepared for each specific task/project. The cost estimate for each specific task/project will be based on an hourly not-to-exceed fee amount. On-call professional services selection will be effective for a period of approximately 18 months, through June 2018.

There is no specific allocated dollar amount dedicated or assigned to anticipated tasks or projects to be accomplished. The City does not guarantee a set amount of work or agreement value for potential services.

General: The proposed Scope of Services is not intended to be a detailed scope of work that will be required as a part of the final professional services agreement(s), but is intended to provide general information to firms wishing to submit proposals. The City will negotiate the detailed Scope of Services with the successful firms as individual tasks/projects are identified, should the City elect to proceed with the projects.

In general, the City will work with the selected firms on a project by project basis to determine the types of services required on a project. The consultants are expected to be able to provide on-call traffic engineering services as required. The services performed by the consulting firms may include, but are not limited to:

- ☐ Existing Traffic Data Collection and Review.
- ☐ Traffic Counts.
- ☐ Traffic Forecasting.
- ☐ Traffic Impact Study.
- ☐ Capacity Analysis.
- ☐ Crash Analysis.
- ☐ Traffic Operations Analysis.
- ☐ Traffic Simulation.

PROFESSIONAL SERVICES AGREEMENT

Project Name: FY17-18 ON-CALL TRAFFIC ENGINEERING SERVICES

- ☐ Traffic Signal Analysis, Warrant Study, and Left Turn Phasing Study.
- ☐ Stop Sign Warrant Analysis.
- ☐ School Traffic Issues Observation and Study.
- ☐ Traffic Control Plans.
- ☐ Speed Study.
- ☐ Sight Distance Analysis.
- ☐ Access Management Analysis and Study.
- ☐ Bicycle and Pedestrian Facility Planning and Design.
- ☐ Traffic Signal Optimization.
- ☐ Traffic Signal Design and Plans.
- ☐ Isolated intersection improvements
- ☐ Miscellaneous Traffic Engineering Assistance.

The following projects are authorized for the first round of On-Call Traffic Engineering Services:

Deming Dr. & W. 5th St. Signal Design

The City is planning to install a new traffic signal at the intersection of Deming Dr. & W. 5th St. Traffic signal and intersection design is to be completed in the spring of 2017. The existing bridge over Crow Creek will be a design constraint as widening or replacement of the structure is not within the scope of this project. Scope of engineering services for the traffic signal analysis and design may include traffic data collection, capacity and queuing analysis, crash analysis, developing optimized traffic signal timing and coordination plans, identification of ROW needs, and traffic signalization design and construction drawings.

Yellowstone Rd. & Vandehei Ave. Signal Modifications

When the City added left turn phasing for eastbound and westbound traffic to the intersection of Yellowstone Rd. & Vandehei Ave. in 2011, the load rating of the existing poles/mastarms was not verified. Subsequently, it was determined that the eastbound and westbound poles/mastarms are not rated for left turn heads and need to be replaced with poles/mastarms meeting WYDOT Load Case 2. Scope of engineering services for the signal modification design may include identification of ROW needs and traffic signalization design and construction drawings.

Walterscheid Blvd & W. Fox Farm Rd. Signal Design

The City is planning to install a new traffic signal at the intersection of Walterscheid Blvd. & W. Fox Farm Rd. In conjunction with the installation of a traffic signal, some roadway geometric improvements will be required, especially on W. Fox Farm Rd., to better align the through lanes and provide dedicated left turn lanes. Scope of engineering services for the traffic signal analysis and design may include traffic data collection, capacity and queuing analysis, crash analysis,

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developing optimized traffic signal timing and coordination plans, identification of ROW needs, and traffic signalization design and construction drawings.

DESIGN OF TRAFFIC ENGINEERING PLANS

This work is for design of traffic signals, roadway intersection modification, signs, pavement markings/markers, lighting, other operational safety improvements and transportation justification studies and warrant analyses. Existing or proposed plans will be provided if available. If, however, no plans are available, field investigation, survey, right of way research and verification of existing topography, utilities, infrastructure, and traffic control equipment shall be conducted. This investigation shall include, but shall not be limited to, such items as utilities, utility potholing, drainage, ADA accessibility, pedestrian safety and circulation, lane usage, potential conflicts with a proposed design, coordination and review by other agencies, City review and permitting, and all information necessary to implement the proposed improvements. The Consultant shall be the point of contact and make all submittals to other agencies on behalf of the City.

All proposals must be made on the basis of, and either meet or exceed, the requirements contained herein. These improvements will be approved by the City of Cheyenne and installed in the City's right-of-way or easements. All individuals performing work under this Contract must have the appropriate licenses, certifications or credentials that prove competence in tasks being performed.

Offerors should provide examples of three (3) traffic signal and intersection improvement modification design projects that have been completed within the past five (5) years. Each project example shall include the following information: a detailed description of the project scope of work, including project duration, completion date, design and construction costs, concerns encountered and their solutions, and any relevant features, to include photos. Include the names and contact information for project clients, project managers and designers. These qualifying projects must be contracted to or have been completed by the offeror, not subconsultants.

1. DESIGN AND CONSTRUCTION STANDARDS

All design and construction shall be done in accordance with the latest edition of the applicable standards including, but not limited to, the following:

- AASHTO Policy on Geometric Design of Highways and Streets
- Manual on Uniform Traffic Control Devices
- Americans with Disabilities Act Accessibility Guidelines. U.S. Department of Justice, United States Access Board
- City of Cheyenne and Board of Public Utilities Construction Standards & Specifications
- City of Cheyenne Drainage Standards

PROFESSIONAL SERVICES AGREEMENT

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Conflicts between design and construction standards shall be resolved by the City.

2. SERVICES

The consultant will work closely with the City of Cheyenne Project Manager to perform the work necessary to create the final plan, specifications and estimate package along with supporting engineering and environmental documents for this project based on standard WYDOT and City formats. Detailed scopes of work will be developed for each individual project at the time the successful consultant is authorized to proceed.

B. General Conditions

The following items are considered to be included as part of the basic compensation for this project:

- Normal business expenses - phone, postage, etc.
- Cost of insurance
- In-house computer time and service
- Word processing, accounting, and man-hour records
- Permits and license fees
- Mileage
- Travel fees, room and board, per diem
- Printing costs for all standard review, bidding, and as-constructed plans and other correspondence and contract documents
- Film and processing
- Overtime engineering and inspection
- Survey materials, stakes, etc
- Additional required services

Any changes in the Consultant's or Subconsultant's staff or fee structure shall be presented in writing to the City for approval prior to initiating any changes or performing any work.

C. Duties, Responsibilities of the Consultant

The Consultant shall supervise and be accountable for all engineering matters related to the project. This responsibility shall extend to supervision and responsibility for the actions of subcontractors or subconsultants working for the Consultant.

CONSULTANT'S ENGINEER WILL:

1. Contractor Selection:

Advise City's Representative regarding recommendation for the selection of a Contractor and any subcontractors.

PROFESSIONAL SERVICES AGREEMENT

Project Name: FY17-18 ON-CALL TRAFFIC ENGINEERING SERVICES

2. **Schedules:**
Review the progress schedule, schedule of Shop Drawing submissions and schedule of values prepared by Contractor and consult with City's Representative concerning their acceptability.
3. **Conferences:**
Conduct and keep minutes of pre-bid and pre-construction conferences with contractors.
4. **Liaison:**
Serve as the City's liaison with Contractor to implement the intent of the Contract Documents.
5. **Shop Drawings and Samples:**
 - a. Receive samples and shop drawing furnished by contractor, record date of their receipt, and track progress of approvals. Advise City's Representative of their acceptability.
 - b. Verify that tests, equipment and systems startup, operation and maintenance instructions are conducted as required by the Contract documents, and that Contractor maintains adequate records thereof; observe, record and report to the City's Representative appropriate details relative to the test procedures and startups.
7. **Interpretation of Contract Documents:**
Transmit to Contractor the City's clarifications and interpretations of the Contract Documents.
8. **Modifications:**
Consider and evaluate any changes or modifications in Drawings or Specifications and report them with recommendations to the City Representative for approval prior to authorizing any such changes or charges to Force Account or other items. Administer Change Orders, Contract Modifications and extra Payment Requests.
9. **Records:**
 - a. Maintain files for correspondence, reports of job conferences, Shop Drawings and samples submissions, reproductions of original contract Documents including all addenda, change orders, field orders, additional Drawings issued subsequent to the execution of the Contract, City's Representative clarifications and interpretations of the Contract Documents, progress reports, and other Project related documents.
 - b. Record names, addresses and telephone numbers of all Contractors, subcontractors, and major suppliers of materials, equipment, date, time and condition of such.

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10. Reports:

- a. Furnish the City's Representative weekly summary reports including the approved progress schedule, and schedule of Shop Drawing submissions.
- b. Consult the City's Representative in advance of scheduled start of important phases of the Work.

11. Payment Requisitions:

Review and certify applications using forms provided by the City for compliance with the established procedure for their submission and forward them with recommendations to the City's Representative noting particularly their relation to the schedule of values, work completed and materials and equipment delivered or paid for at the site, but not incorporated in the Work.

12. Certificates, Maintenance and Operation Manuals:

During the course of the Work, verify that contractor has supplied all certificates, maintenance and operation manuals and other data needed to operate machinery and equipment actually installed and collect all such materials for presentation to City with final construction report.

13. Completion:

- a. Submit to Contractor a punch list of observed items requiring completion or correction.
- b. Conduct final inspection in the company of the City's Representative, Contractor and utility companies involved and prepare a final list of items to be completed or corrected.
- c. Verify that all items on the final list have been completed or corrected, make recommendations to the City concerning acceptance and prepare a certificate of Substantial Completion.
- d. Conduct eleventh (11th) and twenty-third (23rd) month inspections with the City Representative and Contractor's Representatives and report findings to the City's Representative immediately prior to the expiration of the two year or other warranty, as applicable.
- e. After completion of the project prepare and submit to City certified "Record Drawing" plans showing final accepted conditions of the project. The record drawings shall consist of one set of reproducible mylars, one set of prints and an electronic copy in AutoCAD 2014 through current version DXF or DWG format OR Land desktop/Civil 3D Design. The record drawings shall be submitted to the City within 90 days of project completion. A certified final construction report of conditions, maintenance items, inspection reports, contract modifications, correspondence, field orders and any other pertinent information shall be furnished by the project engineer to the City.

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- f. Assist the City staff to implement the final quantities and payments of this project to the City's computerized job accumulation program.

D. Limitations of Authority of the Consultant

Except upon written instructions of City's Representative, Consultant:

1. Shall not authorize any deviation from the Contract Documents or costs, or approve any substitute materials or equipment, without consulting the Owner.
2. Shall not exceed limitations on the City's authority as set forth in the Contract Documents.
3. Shall not undertake any of the responsibilities of the Contractor, subcontractors, utility companies or responsibilities of their superintendent, to expedite the work.
4. Shall not advise on or issue directions relative to any aspect of the means, methods, techniques, sequences or procedures of construction unless such is specifically called for in the Contract Documents.

		Cheyenne FY 2017-18 On-Call Traffic Engineering Services				
PROJECT TASK CHECKLIST, SCHEDULE, AND ASSIGNED STAFF						
TASK #	TASK DESCRIPTION / EVENT	NOTES	Company Responsible	Individuals Responsible	Line Item Budget	
\$34,872		5th at Deming - \$250,000 Budget				
1	Project Kick Off Meeting	Consultant staff will meet with City staff to clarify communication protocols, stakeholders, schedule, coordination and approval checkpoints, public involvement procedures, and other contract items.	All	All	\$450	
2	Traffic and Safety Evaluation	Collect and process eight hour manual turn movement counts. Assemble crash data from WYDOT and evaluate correctable patterns. Review MPO model and historic volume growth and develop growth rates for each link. Estimate ADT, AM, and PM turn movement forecasts for base year 2016, construction years 2020, and design year 2040. Prepare Project-Level Intersection Traffic Projection.	Western	Waddell, Grigsby	\$2,900	
3	Locate Utilities	Locate utilities prior to design of sign plan and location of masts.	UCS & Western	Goff, Sanders, Carroll	\$1,122	
4	Survey	Assemble data from a combination of field survey, County LIDAR, and satellite/aerial imagery.	Western	Neville, Sanders, Carroll	\$4,600	
5	Capacity Analysis and Timing Plan	Western will evaluate signal timing and intersection laneage using HCS version 6.9, and provide a general layout and timing plan.	Western	Grigsby, Downs, Waddell	\$400	
6	Intersection Design	Prepare design of intersection geometry	Western	Grigsby	\$1,000	
7	Signal Design	1) Set poles away from Bridge Abutments back of tangent 2) Stub poles for ped - 4 ped buttons 3) Check on erosion control matting, 4) 4 poles, 4) N-S left turn lane (Left turn phasing) arrow only, 6) light on all 4 poles - LED - Leotech green cobras - 110V, 7) Yank existing luminaires, 8) ask Black Hills to relocate com pole south & put sig pole in place of com pole, 9) power? from Black Hills, 10) Make and model of count down heads, 11) push buttons (what make and model) 12) cabinet on N-W Corner 336, city will supply cabinet and controller, foundation only by controller, 13) contractor supply detection (Wavetronics) all 4 directions, 14) Radio antenna on cabinet by contractor yagie antenna city to supply by city, 15) Re-Do ADA ramps, 16) LED's make and model signal indicators, 17) Cross walks on all 4 legs - thermoplastic, 18) Spec from City on signals & thermoplastic. Prepare standard plan sheets.	Western	Downs	\$13,450	
8	Estimating / Specifications		Western	Grigsby, Carroll	\$1,400	
9	Bid Process		Western	Grigsby	\$1,300	

Exhibit B-1

10	Construction Inspection (CI)	Eight weeks at 8 hours per week (estimated)	Western	Grigsby	\$7,200
11	Post Project Inspection and Adjustment	Tweaking	Western	Downs	\$1,050
\$34,422 Fox Farm at Walterscheid - \$350,000 Budget					
12	Traffic and Safety Evaluation	Collect and process eight hour manual turn movement counts. Assemble crash data from WYDOT and evaluate correctable patterns. Review MPO model and historic volume growth and develop growth rates for each link. Estimate ADT, AM, and PM turn movement forecasts for base year 2016, construction years 2020, and design year 2040. Prepare Project-Level Intersection Traffic Projection.	Western	Waddell	\$2,900
13	Locate Utilities	Locate utilities prior to design of sign plan and location of masts.	UCS & Western	Goff, Sanders, Carroll	\$1,122
14	Survey	Assemble data from field survey, County LIDAR, and satellite/aerial imagery.	Western	Neville, Sanders, Carroll	\$4,600
15	Capacity Analysis and Timing Plan	Western will evaluate signal timing and intersection laneage using HCS version 6.9, and provide a general layout and timing plan.	Western	Grigsby, Downs, Waddell	\$400
16	Intersection Design	Prepare design of intersection geometry	Western	Grigsby	\$1,000
17	Signal Design	1) Crosswalk - ADA's. 2) Geometry on Fox Farm - Can we get left turn Lanes? 3) Keep free right on SB-WB. 4) Left Turn Lanes on Walterscheid. 5) Left turn only signs. 6) Position after locates. 7) fully actuated (same as 5th/Deming). 8) Cabinet - NW corner. 9) Fully lighted. 10) Stubby Poles due to overhead power? 11) Lighting only on North side. 12) Black Hills move existing pole. 13) Pretty much same as 5th/Deming. 14) Trench to main antenna 1" conduit w/Cat 5 Cable. Prepare standard plan sheets.	Western	Downs	\$13,450
18	Estimating / Specifications		Western	Grigsby, Carroll	\$1,400
19	Bid Process		Western	Grigsby	\$1,300
19	Construction Inspection (CI)	Eight weeks at 8 hours per week (estimated)	Western	Grigsby	\$7,200
20	Post Project Inspection and Adjustment		Western	Downs	\$1,050
\$21,000 Vandehei at Yellowstone					
21	Survey		Western	Sanders	\$4,600
22	Locate Utilities	Locate utilities prior to design of sign plan and location of masts.	UCS & Western	Goff, Sanders, Carroll	\$1,870

Exhibit B-2

23	Design	1) Pole with mast arm (road case) 1-3 section 2) Ped stub button 3) splice wiring in pull box, single 3" conduit, 5 conductor actuator turn, 5 cond actuator side nt, 5 cond ground mounts E-W indication, 5 cond walk/don't walk, 3 cond ped buttons, M-20 corner in pull box, detector cable, 2#10's lighting, 4) New Pull Box, 5) New Heads, 6) Wavetronics on E-W, 7) Reuse Luminares, 8) There will be new 6-strand fiber.	Western	Downs	\$6,880
24	Estimating / Specifications		Western	Nunn, Downs	\$1,300
25	Bid Process		Western	Grigsby	\$1,300
26	Construction Inspection (CI)		Western	Grigsby, Downs	\$3,600
27	Post Project Inspection and Adjustment	Tweaking	Western	Downs	\$1,050
	REIMBURASABLE EXPENSES (Mileage, Printing, etc.)		Western	Taylor	\$400
			PROJECT TOTAL		\$90,294

PROFESSIONAL SERVICES AGREEMENT

Project Name: FY17-18 ON-CALL TRAFFIC ENGINEERING SERVICES

“EXHIBIT C”

PROJECT SCHEDULE

Four weeks after Notice to Proceed (NTP) – Plans complete for Deming & 5th St.

Six weeks after NTP – Plans complete for Vandehei & Yellowstone

Twelve weeks after NTP – Plans complete for Fox Farm & Walterscheid